

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

SUPPLEMENTAL MOTION FOR CONFIDENTIAL TREATMENT

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) moves pursuant to 46 C.F.R. §§ 502.5(b), 502.69, and 502.141(j)(1) for the confidential treatment of the non-public version of Complainant’s Motion for Summary Decision, Statement of Undisputed Material Facts (“SUMF”), and Appendix documents.

On June 9, 2021, the Presiding Officer issued an Order Entering Stipulation and Second Amended Order of Confidentiality (“Order”), which provides for the confidential treatment of certain materials in this proceeding.

On April 29, 2022, IMCC filed a Motion for Confidential Treatment requesting confidential treatment for portions of the Motion for Summary Decision and the SUMF and continued confidential treatment for certain documents in the Appendix exhibits that have been

designated as Confidential or Confidential Outside Counsel Eyes Only (“OCEO”) by IMCC, the Respondents, or non-parties pursuant to the Order. The April 29 Motion described the categories of information and documents for which confidential treatment was requested.

On May 4, 2022, Respondents’ counsel designated additional documents and information as confidential under the Order. Accordingly, IMCC respectfully submits this Supplemental Motion for Confidential Treatment. Respondents consent to both the April 29 Motion and this Supplemental Motion.

Pursuant to Rule 502.5(b), IMCC is providing with this Supplemental Motion the confidential version of its Motion for Summary Decision, the SUMF, and Appendix, which incorporate Respondents’ new designations. Exhibit A to this Motion is a table listing the Bates numbers of each exhibit and indicating in the “Confidential” column whether it has been designated Confidential or Confidential OCEO. The highlighting in Exhibit A indicates the documents Respondents designated as Confidential or Confidential OCEO on May 4. The information IMCC seeks permission to redact in the public version of the Motion for Summary Decision and SUMF is highlighted, including images.

Respectfully submitted,

DATED: May 4, 2022

W. Stephen Cannon

W. Stephen Cannon

David D. Golden

Seth D. Greenstein

Richard O. Levine

Allison F. Sheedy

J. Wyatt Fore

Paulette Rodríguez López

Janice Johnson

Osob M. Samantar

CONSTANTINE CANNON LLP

1001 Pennsylvania Avenue, NW

Suite 1300 N

Washington, DC 20004

Phone: 202-204-3500

scannon@constantinecannon.com

Daniel Vitelli

CONSTANTINE CANNON LLP

335 Madison Avenue

9th Floor

New York, NY 10017

Phone: 212-350-2700

dvitelli@constantinecannon.com

*Attorneys for Complainant
Intermodal Motor Carriers Conference
of the American Trucking Associations*

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Deposition Transcript of Anthony Micena, Yang Ming Marine 143(b)(6) [Excerpts]	1/21/2022	CONFIDENTIAL-OCEO	CX00000001	CX00000185
Deposition Transcript of Chris Giltz, Evans Delivery 143(b)(6) [Excerpts]	12/21/2021	CONFIDENTIAL	CX00000186	CX00000206
Deposition Transcript of Dan Compton, HMM 143(b)(6) [Excerpts]	11/17/2021	CONFIDENTIAL-OCEO	CX00000207	CX00000246
Deposition Transcript of Dave Manning [Excerpts]	11/23/2021	CONFIDENTIAL	CX00000247	CX00000259
Deposition Transcript of Dennis Messing, ZIM Integrated Shipping Services 143(b)(6) [Excerpts]	11/16/2021	CONFIDENTIAL-OCEO	CX00000260	CX00000303
Deposition Transcript of Eric Chung, WAN HAI 143(b)(6) [Excerpts]	1/20/2022	CONFIDENTIAL-OCEO	CX00000304	CX00000328
Deposition Transcript of Glenn Fehribach, ContainerPort Group 143(b)(6) [Excerpts]	1/28/2022	CONFIDENTIAL	CX00000329	CX00000336
Deposition Transcript of James Houghtalin, COSCO Shipping Lines 143(b)(6) [Excerpts]	12/17/2021	CONFIDENTIAL-OCEO	CX00000337	CX00000447
Deposition Transcript of Jeffrey Lawrence [Excerpts]	1/31/2022	CONFIDENTIAL-OCEO	CX00000448	CX00000458
Deposition Transcript of Ken Tock [Excerpts]	9/22/2021	CONFIDENTIAL-OCEO	CX00000459	CX00000476
Deposition Transcript of Kevin Lhotak, Reliable Transportation Specialists 143(b)(6) [Excerpts]	12/15/2021	CONFIDENTIAL	CX00000477	CX00000489
Deposition Transcript of Michael Wilson, Consolidated Chassis Management 143(b)(6) [Excerpts]	9/20/2021	CONFIDENTIAL-OCEO	CX00000490	CX00000529
Deposition Transcript of Mike Kelso, Ability Tri-Modal 143(b)(6) [Excerpts]	1/18/2022	CONFIDENTIAL	CX00000530	CX00000533
Deposition Transcript of Robert Basila, CMA 143(b)(6) [Excerpts]	1/14/2022	CONFIDENTIAL-OCEO	CX00000534	CX00000543
Deposition Transcript of Ronald Armstrong [Excerpts]	10/6/2021	CONFIDENTIAL-OCEO	CX00000544	CX00000605
Deposition Transcript of Ronald Armstrong, ONE 143(b)(6) [Excerpts]	10/28/2021	CONFIDENTIAL-OCEO	CX00000606	CX00000639
Deposition Transcript of Scott George, TCW & NACPC 143(b)(6) [Excerpts]	1/11/2022	CONFIDENTIAL	CX00000640	CX00000653
Deposition Transcript of Thomas Barattini [Excerpts]	10/1/2021	CONFIDENTIAL	CX00000654	CX00000694
Deposition Transcript of Thomas Barattini, Hapag Lloyd 143(b)(6) [Excerpts]	10/22/2021	CONFIDENTIAL-OCEO	CX00000695	CX00000708
Deposition Transcript of Thomas Weisberg, Maersk A/S 143(b)(6) [Excerpts]	11/19/2021	CONFIDENTIAL-OCEO	CX00000709	CX00000772
Deposition Transcript of Tom Wang, Evergreen Line Joint Service Agreement 143(b)(6) [Excerpts]	11/3/2021	CONFIDENTIAL-OCEO	CX00000773	CX00000798
Deposition Transcript of Vincenzo Roveccio, MSC 143(b)(6) [Excerpts]	12/3/2021	CONFIDENTIAL	CX00000799	CX00000870
Deposition Transcript of Douglass Coates (Respondents Expert) [Excerpts]	3/29/2022	CONFIDENTIAL-OCEO	CX00000871	CX00000915
Deposition Transcript of William Fentress, CMA 143(b)(6)	1/14/2022	CONFIDENTIAL-OCEO	CX00000916	CX00001265
Initial Expert Report of Dr. James Langenfeld (Complainant Expert)	2/28/2022	CONFIDENTIAL-OCEO	CX00001266	CX00001361
Initial Expert Report of Dr. Jean-Paul Rodrigue (Complainant Expert)	2/28/2022	CONFIDENTIAL-OCEO	CX00001362	CX00001523
Initial Expert Report of MICP Capital Inc. (Respondents Experts)	2/28/2022	CONFIDENTIAL-OCEO	CX00001524	CX00001564
Rebuttal Expert Report of Dr. James Langenfeld (Complainant Expert)	3/18/2022	CONFIDENTIAL-OCEO	CX00001565	CX00001605
Rebuttal Expert Report of Dr. Jean-Paul Rodrigue (Complainant Expert)	3/18/2022	CONFIDENTIAL-OCEO	CX00001606	CX00001624
Rebuttal Expert Report of Dr. James Reitzes (Respondents Expert)	3/18/2022	CONFIDENTIAL-OCEO	CX00001625	CX00001687
Rebuttal Expert Report of MICP Capital Inc. (Respondents Expert)	3/18/2022	CONFIDENTIAL-OCEO	CX00001688	CX00001699
Declaration of Ronald E. Joseph (DCLI)	2/22/2022	CONFIDENTIAL-OCEO	CX00001700	CX00001701
Declaration of Val Noel (Trac Intermodal)	2/11/2022	CONFIDENTIAL-OCEO	CX00001702	CX00001703
Declaration of Nathaniel Seeds (Flexi-Van)	2/15/2022	CONFIDENTIAL-OCEO	CX00001704	CX00001705
Declaration of Randall J. Clifford (Ventura)	2/23/2022	CONFIDENTIAL	CX00001706	CX00001708
Affidavit of Glenn Fehribach (CPG)	4/25/2022	CONFIDENTIAL	CX00001709	CX00001711
Affidavit of Mark George (IMC Companies)	4/25/2022	CONFIDENTIAL	CX00001712	CX00001714
Affidavit of Scott George (TCW)	4/25/2022	CONFIDENTIAL	CX00001715	CX00001716
OCEMA Agreement FMC Agreement No. 011284-083	9/9/2020		CX00001717	CX00001744
Consolidated Chassis Management Pool Agreement FMC Agreement No. 011962-018	1/30/2021		CX00001745	CX00001777
"History of APL Limited", FundingUniverse, http://www.fundinguniverse.com/company-histories/apl-limited-history/ (last visited Feb. 28, 2022)	4/6/2006		CX00001778	CX00001779

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
“Composition of the Global Fleet of Containers”, 2012, Port Economics, Management and Policy, https://porteconomicsmanagement.org/pemp/contents/part8/containers-and-ports/composition-global-fleetcontainers/ (last visited Feb. 28, 2022).	2012		CX00001780	CX00001782
CPCS Transcom, InterPro Advisory, Prime Focus and Jean-Paul Rodrigue, Guidebook for Assessing Evolving International Container Chassis Supply Models (2012)	2012		CX00001783	CX00001885
CALSTART, Key Performance Parameters for Drayage Trucks Operating at the Ports of Los Angeles and Long Beach (Nov 15, 2013), https://calstart.org/wp-content/uploads/2018/10/I-710-Project_Key-Performance-Parameters-for-Drayage-Trucks.pdf	11/115/2013		CX00001886	CX00001919
Average Length of Haul, Domestic Passenger and Freight Transport, United States, 1960-2016, THE GEOGRAPHY OF TRANSPORT SYSTEMS, https://transportgeography.org/contents/chapter5/transportation-modes-modal-competition-modal-shift/length-haul-passengers-united-states/	2016		CX00001920	CX00001922
CCM, Frequently Asked Questions – General Subject Matters (Sept. 22, 2017), https://www.ccmpool.com/UploadedDocuments/Frequently-Asked-Questions-9-22-17.pdf	9/22/2017		CX00001923	CX00001925
Ari Ashe, US drayage rates rise as length of haul shrinks, The Journal of Commerce (July 19, 2019), https://www.joc.com/trucking-logistics/drayage/us-drayage-rates-rise-length-haul-shrinks_20190719.html	7/19/2019		CX00001926	CX00001934
“Difficult solutions to US chassis chaos emerge,” Journal of Commerce, February 6, 2019, https://www.joc.com/port-news/port-equipment/difficult-solutions-us-chassis-chaos-emerge_20190206.html	2/6/2019		CX00001935	CX00001947
Cassidy, William B., “More than cost drives shipper haulage strategies,” Journal of Commerce, March 6, 2019, https://www.joc.com/maritime-news/international-freight-shipping/more-cost-drives-shipper-haulagestrategies_20190306.html .	3/6/2019		CX00001948	CX00001956
Ari Ashe, DCLI exiting NVO business to deal directly with truckers, THE JOURNAL OF COMMERCE (Oct. 6, 2020), https://www.joc.com/trucking-logistics/trucking-equipment/direct-chassislink-inc/dcli-exiting-nvobusiness-deal-directly-truckers_20201006.html	10/6/2020		CX00001957	CX00001965
Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role, pp. 3-4, 10-12.	3/8/2021		CX00001966	CX00001982
Miller, Greg, “Global demand isn’t booming. So why are shipping rates this high?” American Shipper, August 6, 2021, https://www.freightwaves.com/news/global-demand-isnt-booming-so-why-are-shipping-rates-this-high	8/6/2021		CX00001983	CX00001989
Pool of Pools, About Us, https://web.archive.org/web/20200820222149/http://www.pop-lalb.com/	2022		CX00001990	CX00001991
CCM, Choice Program, https://www.ccmpool.com/Chassis-Pool/Choice-Program.aspx	2022		CX00001992	CX00001994
Decision of Surface Transportation Board in North American Chassis Pool Cooperative, LLC—Pooling Application	1/22/2013		CX00001995	CX00001999
Respondent CCM Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002000	CX00002012
Respondent CMA-CGM Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002013	CX00002024
Respondent COSCO Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002025	CX00002037
Respondent Evergreen Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002038	CX00002051
Respondent Hapag-Lloyd Objections and Answers to Interrogatories	6/14/2021	CONFIDENTIAL-OCEO	CX00002052	CX00002064
Respondent HMM Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002065	CX00002076
Respondent Maersk Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002077	CX00002088

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Respondent MSC Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002089	CX00002100
Respondent OCEMA Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002101	CX00002112
Respondent ONE Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002113	CX00002124
Respondent Wan Hai Objections and Answers to Interrogatorie	6/14/2021	CONFIDENTIAL-OCEO	CX00002125	CX00002135
Respondent Yang Ming Objections and Answers to Interrogatorie	6/14/2021	CONFIDENTIAL-OCEO	CX00002136	CX00002147
Respondent ZIM Objections and Answers to Interrogatorie:	6/14/2021	CONFIDENTIAL-OCEO	CX00002148	CX00002159
The Chassis "Choice" Dilemma"CCM presentator	12/2018	CONFIDENTIAL	CX00002160	CX00002169
CCM Pools Operations Manual version 2.9	4/1/2019	CONFIDENTIAL-OCEO	CX00002170	CX00002220
Interoperability Matters! Presentation	12/19/2019		CX00002221	CX00002232
Letter from Michael Wilson to Emily Pahon re: CCM Notice of Termination of (GCCP/COCP) Chassis Use and Contribution Agreements	5/21/2020	CONFIDENTIAL-OCEO	CX00002233	CX00002233
Email from Mike Wilson to Anny Fine (CCM) forwarding the slides for the December 12, 2019 meeting	12/5/2019	CONFIDENTIAL-OCEO	CX00002234	CX00002234
Presentation on economic and industry overview attached to email from Mike Wilson to Anny Fine (CCM) for the December 12, 2019 meeting	12/5/2019	CONFIDENTIAL-OCEO	CX00002235	CX00002252
Email from Jeffrey Lawrence to Mike Wilson and Frank Grossi re: NACPC and some random strategic thoughts	1/31/2019		CX00002253	CX00002255
Email chain, top email from Vincenzo Roveccio to Mike Wilson re: DCLI letter re: choice	7/10/2019	CONFIDENTIAL-OCEO	CX00002256	CX00002258
CCE Board Meeting Presentation	2/19/2020	CONFIDENTIAL-OCEO	CX00002259	CX00002334
Email chain, top email from Mike Wilson to Thomas Engel (Hapag-Lloyd) re: CCE Board of Directors Meeting attaching CCE Board Meeting presentation	1/28/2021	CONFIDENTIAL-OCEO	CX00002335	CX00002378
CCM Pools Operations Manual version 4.0	10/1/2019	CONFIDENTIAL-OCEO	CX00002379	CX00002429
Email chain, top email from Mike Wilson to Frank Grossi (COSCO) and Jeffrey Lawrence (OCEMA) re: MSC in Memphis	6/25/2019	CONFIDENTIAL-OCEO	CX00002430	CX00002432
Email chain between Jon Poelma, Mike Wilson, and Ken Tock re: DCLI HMM conversion	4/2/2019	CONFIDENTIAL-OCEO	CX00002433	CX00002435
Email from Mike Wilson to Tom Martucci, Ken Tock, and Timothy Sibley re: Choice Document Discussion	11/20/2019	CONFIDENTIAL-OCEO	CX00002436	CX00002440
CCE Board Meeting Presentation	5/7/2019	CONFIDENTIAL-OCEO	CX00002441	CX00002456
Email exchange between Tony Micena and Ken Tock re: ATS Trucking - SACP	12/7/2018	CONFIDENTIAL-OCEO	CX00002457	CX00002458
Email chain top email from Keisha Wallace Bryan to James Ford-Hutchinson and Ken Tock re: single chassis provider - Hapag Lloyd	7/12/2018	CONFIDENTIAL-OCEO	CX00002459	CX00002462
Email chain top email Thomas Barattini to Keisha Wallace Bryant re: Hapag Lloyd chassis provider	8/3/2016	CONFIDENTIAL-OCEO	CX00002463	CX00002467
Email chain, top email from Keisha Wallace Bryant to Jeff Kabella with attachment re: BCO's using choice for ONE line in SACP	6/2/2020	CONFIDENTIAL-OCEO	CX00002468	CX00002481
DCLI Open Choice Process presentation to CCM	6/8/2016	CONFIDENTIAL-OCEO	CX00002482	CX00002487
Email chain top email from Jon Poelma to Ken Tock re: OCEMA Input Requested for SoCal Ports Annual Chassis Meeting	3/6/2018	CONFIDENTIAL-OCEO	CX00002488	CX00002490
Email chain between Dan Compton and Jeffrey Lawrence re: HMM leaving the CCM pools	3/27/2019	CONFIDENTIAL-OCEO	CX00002491	CX00002494
Email exchange between Ken Tock and Trey Gibbons (MAT Holdings) re: ocean carriers and CCM pools	12/20/2016	CONFIDENTIAL-OCEO	CX00002495	CX00002497
CCM Board Meeting September 23, 2016 native presentator	9/23/2016	CONFIDENTIAL-OCEO	CX00002498	CX00002509
CCM Board Meeting May 18	5/18/2016	CONFIDENTIAL-OCEO	CX00002510	CX00002511
Email exchange between Ken Tock and Dave Manning re: Yang Ming	8/25/2015	CONFIDENTIAL-OCEO	CX00002512	CX00002512
Email from John Allen to Robert Basila re: CMA Oakland proposal 1.20.2021	1/20/2021	CONFIDENTIAL-OCEO	CX00002513	CX00002520
Amendment to Amended and Restated Chassis Lease Agreement between TRAC Intermodal and CMA-CGM	3/1/2021	CONFIDENTIAL-OCEO	CX00002521	CX00002532
Email from Robert Basila to James Bowe re: LA chassis supply	12/7/2020	CONFIDENTIAL-OCEO	CX00002533	CX00002535
Amended and Restated Chassis Lease Agreement between TRAC Intermodal and CMA-CGM	12/3/2019	CONFIDENTIAL-OCEO	CX00002536	CX00002571
Email from John Allen to Robert Basila re: Bay Area chassis poo	1/26/2021	CONFIDENTIAL-OCEO	CX00002572	CX00002575
Meeting invite from John Allen to Robert Basila re: Flexi cost model	1/19/2021	CONFIDENTIAL-OCEO	CX00002576	CX00002576

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Email from John Allen to Robert Basila re: master usage file	1/18/2021	CONFIDENTIAL-OCEO	CX00002577	CX00002578
Master usage file spreadsheet attachment to email from John Allen to Robert Basila	1/18/2021	CONFIDENTIAL-OCEO	CX00002579	CX00002579
Email from William Fentress to Gregory Evans re: chassis provisioning	3/17/2021	CONFIDENTIAL-OCEO	CX00002580	CX00002581
Amendment to the Chassis Lease Agreement between TRAC Intermodal and CMA-CGM	12/1/2017	CONFIDENTIAL-OCEO	CX00002582	CX00002585
Chassis Lease Agreement between TRAC Intermodal and CMA-CGM	1/1/2017	CONFIDENTIAL-OCEO	CX00002586	CX00002620
Email chain between Brian Doyle, James Michalski, John Bell and Alan Schmidt of Trac Intermodal re: CMA-CGM transition to TGRP June 1 approval	5/11/2016	CONFIDENTIAL-OCEO	CX00002621	CX00002628
Email from Joel Gentil to Timothy Haas, Frederick Girel, and Robert Basila re: TRAC lease negotiation	9/3/2019	CONFIDENTIAL-OCEO	CX00002629	CX00002642
Email from John Bell to Robert Cannizzaro and William Fentress re: TRAC 3.28.2019 executive summary	3/25/2019	CONFIDENTIAL-OCEO	CX00002643	CX00002653
Email from Robert Basila to Timothy Haas, Ludovic Renou, Ed Aldridge, and Chris Fricker	9/16/2019	CONFIDENTIAL-OCEO	CX00002654	CX00002663
Email from Timonthy Haas to Gregory Evans re: chassis renewal and strategy June 2019	12/9/2019	CONFIDENTIAL-OCEO	CX00002664	CX00002683
Email from Alan Schmid to CMA team re: CMA/APL - choice process review	11/18/2007	CONFIDENTIAL-OCEO	CX00002684	CX00002685
Email from Brian Doyle to James Michalski and Ed McCarthy re: TRAC CMA RFP	10/30/2015	CONFIDENTIAL-OCEO	CX00002686	CX00002708
Email from Timonthy Haas to Robert Basila re: DCLI revised proposal	8/20/2019	CONFIDENTIAL-OCEO	CX00002709	CX00002712
Email from Gregory Evans to Chris Fricker re: Memphis chassis analysis	3/11/2020	CONFIDENTIAL-OCEO	CX00002713	CX00002730
Email from William Fentress to Alan Schmid and James Bowe	12/12/2019	CONFIDENTIAL-OCEO	CX00002731	CX00002731
Email from John Mizerek to Robert Basila re: Flexivan rate indication	8/19/2019	CONFIDENTIAL-OCEO	CX00002732	CX00002735
Email from Brian Doyle to James Michalski and Ed McCarthy re: DCLI Response to CMA	10/31/2015	CONFIDENTIAL-OCEO	CX00002736	CX00002745
Email from Brian Doyle to James Michalski, John McKenzie, and John Bell re: chassis proposal cost evaluation	11/5/2015	CONFIDENTIAL-OCEO	CX00002746	CX00002748
Email chain top email re: CMA-CGM carrier chassis notices	2/27/2018	CONFIDENTIAL-OCEO	CX00002749	CX00002753
Email from Phillip Wolfe to Timothy Haas and Robert Cannizzaro re: DCLI revised proposal	5/3/2019	CONFIDENTIAL-OCEO	CX00002754	CX00002756
Preferred Pricing Agreement between DCLI and ContainerPort Group Supplement #4 to Master Agreement between DCLI and ContainerPort Group	4/29/2020	CONFIDENTIAL-OCEO	CX00002757	CX00002758
ContainerPort Group 2019 chassis invoices spreadsheet	5/26/2021	CONFIDENTIAL-OCEO	CX00002759	CX00002763
Email chain, top email from Alan Schmid (TRAC Intermodal) to Jennifer Rioux and Dennis Maaser re: ContainerPort Group national agreement/targeted discount	2019	CONFIDENTIAL-OCEO	CX00002764	CX00002764
Summary of the billing reconciliation spreadsheet, 2020	5/22/2018	CONFIDENTIAL-OCEO	CX00002765	CX00002769
2017 Chicago billing codes spreadsheet from ContainerPort Group	2020	CONFIDENTIAL-OCEO	CX00002770	CX00002779
2020 Chicago billing codes spreadsheet from ContainerPort Group	2017	CONFIDENTIAL-OCEO	CX00002780	CX00002780
Equipment User Agreement for Chassis Pool Chassis between TRAC Intermodal and COSCO SHIPPING Lines	2020	CONFIDENTIAL-OCEO	CX00002781	CX00002781
Chassis User Agreement between Direct ChassisLink and COSCO SHIPPING Lines	7/1/2018	CONFIDENTIAL-OCEO	CX00002782	CX00002795
Amendment to Equipment User Agreement between TRAC Intermodal and COSCO SHIPPING Lines	7/1/2018	CONFIDENTIAL-OCEO	CX00002796	CX00002812
COSCO SHIPPING Lines Chassis Provider Request for Proposal	4/1/2020	CONFIDENTIAL-OCEO	CX00002813	CX00002817
Flexivan Revised Bid Proposal to COSCO SHIPPING Lines National Chassis RFP	1/24/2018	CONFIDENTIAL-OCEO	CX00002818	CX00002825
TRAC Proposal Response to COSCO SHIPPING Lines RFP	2/15/2018	CONFIDENTIAL-OCEO	CX00002826	CX00002832
Email from COSCO's Frank Grossi to COSCO employees	3/23/2018	CONFIDENTIAL-OCEO	CX00002833	CX00002845
Email from Paul Nazzaro to Frank Grossi re: DCLI and COSCO	12/6/2018	CONFIDENTIAL-OCEO	CX00002846	CX00002846
COSCO CCM Pool Exit Plan presentation by DCLI	2/13/2019	CONFIDENTIAL-OCEO	CX00002847	CX00002850
	2/2019	CONFIDENTIAL-OCEO	CX00002851	CX00002867

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Amendment 1 to Chassis User Agreement between NACPC and COSCO Container Lines Co.	7/1/2016	CONFIDENTIAL-OCEO	CX00002868	CX00002869
Email from Eric Witsman to Linda Li re: study for chassis and DRF	11/6/2018	CONFIDENTIAL-OCEO	CX00002870	CX00002885
Email from James Houghtalin to Paul Nazzaro re: 2018 chassis usage discussions	8/14/2018	CONFIDENTIAL-OCEO	CX00002886	CX00003035
Attachment data spreadsheet with COSCO and OES incentive estimates	8/14/2018	CONFIDENTIAL-OCEO	CX00003036	CX00003036
Email from James Houghtalin to Paul Nazzaro re: COSCO NEW SERVICE IN TAMPA	1/22/2019	CONFIDENTIAL-OCEO	CX00003037	CX00003037
BNSF Contract MA111 International Transportation Contract with COSCO	4/1/2019	CONFIDENTIAL-OCEO	CX00003038	CX00003047
CN Confidential Transportation Agreement No. 660882-AE between COSCO and Canadian National Railway Company	2/28/2021	CONFIDENTIAL-OCEO	CX00003048	CX00003081
Norfolk Southern Railway Company Intermodal Transportation Agreement with COSCO	8/1/2019	CONFIDENTIAL-OCEO	CX00003082	CX00003116
Data spreadsheet with COSCO start stop list	12/7/2021	CONFIDENTIAL-OCEO	CX00003117	CX00003120
Equipment User Agreement for Chassis Pool Chassis between TRAC Intermodal and COSCO Container Lines Co.	5/1/2016	CONFIDENTIAL-OCEO	CX00003121	CX00003142
Equipment User Agreement for Chassis Pool Chassis between TRAC Intermodal and COSCO SHIPPING Lines	7/1/2021	CONFIDENTIAL-OCEO	CX00003143	CX00003154
Evans Delivery Chassis Reports (EvansDelivery_ChassisJan2017.xls - EvansDelivery_ChassisDec2020.xls)	2017-2020	CONFIDENTIAL-OCEO	CX00003155	CX00003206
Daily rate charged to Evans Delivery for chassis January 2019-October 2019	2019	CONFIDENTIAL-OCEO	CX00003207	CX00003207
Daily rate charged to Evans Delivery for chassis	2019	CONFIDENTIAL-OCEO	CX00003208	CX00003219
Email from Alan Schmid to Chris Giltz re: Evans - Agreement Amendments / "Agreed" Response	4/8/2020	CONFIDENTIAL-OCEO	CX00003220	CX00003225
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Evergreen Marine (CORP) TAIWAN LTD.	12/1/2017	CONFIDENTIAL-OCEO	CX00003226	CX00003248
Email chain top email from Tom Wang to Charies Yeh re: Evergreen proposal for Evergreen Minneapolis Neutral Pool	2/10/2015	CONFIDENTIAL-OCEO	CX00003249	CX00003259
Email from Ross Pignaz to Tom Wang re: APMT usage analysis	4/2/2015	CONFIDENTIAL-OCEO	CX00003260	CX00003305
Attachment data spreadsheet with IEP chassis ownership statistic	4/2/2015	CONFIDENTIAL-OCEO	CX00003306	CX00003306
Email chain, top email from Tom Wang to Robert L.T. Tan, et. al at Evergreen re: TRAC proposal to Evergreen Metro Pool NY NJ Baltimore and Philadelphia, August 3, 2015	8/21/2015	CONFIDENTIAL-OCEO	CX00003307	CX00003351
Email from Tom Wang to Robert L.T. Tan re: chassis market analysis in US attaching DCLI and TRAC proposals	3/2/2016	CONFIDENTIAL-OCEO	CX00003352	CX00003429
Email from Tom Wang to Charles Yeh re: memo to CCE Board on CCM Pool status	3/3/2016	CONFIDENTIAL-OCEO	CX00003430	CX00003435
Email from Tom Wang to Leanne Chiu re: requests EGA'S comments and inputs on material presentation to Management	6/2/2016	CONFIDENTIAL-OCEO	CX00003436	CX00003465
Email from Mary O'Neil to David Chen, Charles Yeh, Abraham Tsai, and Tom Wang re: Evergreen TRAC purchase and usage proposal for LA/Long Beach	9/10/2016	CONFIDENTIAL-OCEO	CX00003466	CX00003477
Email from Tom Wang to Leanne Chiu re: responses to Evergreen TRAC purchase and usage proposal for LA/Long Beach	9/15/2016	CONFIDENTIAL-OCEO	CX00003478	CX00003505
Email from Robert L.T. Tan to Tom Wang re: preliminary analysis on TRAC/DCLI offeres to Evergreen's own chassis at LAX	11/1/2016	CONFIDENTIAL-OCEO	CX00003506	CX00003531
Equipment User Agreement for Marine Chassis Pools between TRAC International and Evergreen Line	11/28/2016	CONFIDENTIAL-OCEO	CX00003532	CX00003549
Chassis Purchase and Sale Agreement between TRAC Intermodal and Evergreen Shipping Agency (America)	11/28/2016	CONFIDENTIAL-OCEO	CX00003550	CX00003638
Chassis Purchase and Sale Agreement between Trac Intermodal and Evergreen Shipping Agency (America) Corp.	12/1/2017	CONFIDENTIAL-OCEO	CX00003639	CX00003646
Internal Evergreen email chain, top email from Bruce Lo to Rick Wang, Alan Liu, Willow Liu, and Charles Yeh re: progress update on the sale of EGA chassis in CCM pools	5/10/2019	CONFIDENTIAL-OCEO	CX00003647	CX00003651
Email from Bruce Lo to Rick H.P. Wang re: final SSC meeting 5-9-2019	5/22/2019	CONFIDENTIAL-OCEO	CX00003652	CX00003707
Email from Tom Wang to Bruce Lo re: Progress update on the sale of EGA chassis in CCM pools	7/1/2019	CONFIDENTIAL-OCEO	CX00003708	CX00003753

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Chassis Use Agreement EMC between Direct ChassisLink and Evergreer Line Joint Service Agreement	10/22/2019	CONFIDENTIAL-OCEO	CX00003754	CX00003778
Email chain, top email from Philip Wolfe to Tom Wang re: DCLI CCM pool chassis provision options	2/11/2021	CONFIDENTIAL-OCEO	CX00003779	CX00003783
Chassis Use Agreement between Direct ChassisLink and Evergreer Shipping Agency (America)	10/22/2019	CONFIDENTIAL-OCEO	CX00003784	CX00003808
Evergreen recommendation memorandum re: DCLI as IEP at CCM pool areas	6/26/2019	CONFIDENTIAL-OCEO	CX00003809	CX00003812
Letter of Authority for Chassis Pool Provisioning at Union Pacific Railroad Intermodal Terminals with Evergreen	6/20/2020	CONFIDENTIAL-OCEO	CX00003813	CX00003814
Amendment # 1 to Chassis Use Agreement EMC between Direct ChassisLink and Evergreen Line Joint Service Agreement	10/22/2019	CONFIDENTIAL-OCEO	CX00003815	CX00003821
BNSF Railway Company International Transportation Agreement with Evergreen America Corp.	11/01/2005	CONFIDENTIAL-OCEO	CX00003822	CX00003828
Union Pacific Railroad Company Exempt Rail Transportation Agreement with Evergreen America Corp.	5/01/2005	CONFIDENTIAL-OCEO	CX00003829	CX00003842
TRAC Intermodal, Flexi-Van, and DCLI published daily rate:	2020	CONFIDENTIAL-OCEO	CX00003843	CX00003855
Letter from Flexi-Van Leasing and DCLI to Department of Justice, Antitrust Division re: request for business review	1/22/2014	CONFIDENTIAL	CX00003856	CX00003892
Hapag-Lloyd Position Paper re: contract with TRAC Intermodal for chassis	2018	CONFIDENTIAL-OCEO	CX00003893	CX00003893
Chassis Use Agreement between Direct ChassisLink and Hapag-Lloyd (America)	10/1/2018	CONFIDENTIAL-OCEO	CX00003894	CX00003905
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Hapag-Lloyd (America)	1/1/2019	CONFIDENTIAL-OCEO	CX00003906	CX00003947
GCCP Chassis Pool User Agreement between Flexi-Van Leasing and Hapag-Lloyd AG	1/1/2013	CONFIDENTIAL-OCEO	CX00003948	CX00003958
Email string between Thomas Barattini and David Wilson re: NACPC Intermodal Factbook: An Introduction to Intermodal Freight Transportation	10/4/2018		CX00003959	CX00003960
	2017	CONFIDENTIAL	CX00003961	CX00003992
Chassis Purchase Agreement between Direct ChassisLink and Hapag Lloyd AG	11/28/2012	CONFIDENTIAL-OCEO	CX00003993	CX00004009
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Halag Lloyd (America) [Barattini Dep. Ex. 7]	11/28/2012	CONFIDENTIAL-OCEO	CX00004010	CX00004035
Chassis Purchase and Sale Agreement between TRAC Intermodal and Hapag Lloyd AG	11/28/2012	CONFIDENTIAL-OCEO	CX00004036	CX00004048
Chassis Use Agreement between Direct ChassisLink and Hapag-Lloyd (America)	12/21/2012	CONFIDENTIAL-OCEO	CX00004049	CX00004059
Email from Thomas Barattini to Sharon Jelen, Douglas Whyte, and Phillip Summers re: Tenders	10/26/2012	CONFIDENTIAL-OCEO	CX00004060	CX00004083
Email chain between Thomas Barattini, Janet Sim, Phillip Summers, and Shan Elias re: HLCU revenue analysis	12/11/2017	CONFIDENTIAL	CX00004084	CX00004085
Amendment #1 to Chassis Use Agreement between Direct ChassisLink and Hapag-Lloyd (America)	10/13/2017	CONFIDENTIAL-OCEO	CX00004086	CX00004088
Amendment to Equipment User Agreement between TRAC Intermoda and Hapag-Lloyd (America)	1/1/2017	CONFIDENTIAL-OCEO	CX00004089	CX00004097
TRAC Proposal for current agreement/term revision, COCP transition to TMEP, and TPSP/PoP usage inclusion for Hapag-Lloyd	8/16/2016	CONFIDENTIAL-OCEO	CX00004098	CX00004100
Chassis Use Agreement between Direct ChassisLink and Hapag-Lloyd (America)	1/1/2016	CONFIDENTIAL-OCEO	CX00004101	CX00004114
Amendment to Equipment User Agreement between TRAC Intermoda and Hapag-Lloyd (America)	1/1/2017	CONFIDENTIAL-OCEO	CX00004115	CX00004151
Norfolk Southern Railway Company Intermodal Transportation Agreement with Hapag-Lloyd AG (Barattini Dep Ex. 34)	7/1/2022	CONFIDENTIAL	CX00004152	CX00004190
Chassis Use Agreement between Direct ChassisLink and HMM and 11/3/2017 Letter from Jae Lee to Danny Jeong re: Revised Contract Proposal	11/30/2017	CONFIDENTIAL-OCEO	CX00004191	CX00004207
Equipment User Agreement between TRAC Intermodal and HMN	1/1/2020	CONFIDENTIAL-OCEO	CX00004208	CX00004211
DCLI Letter to HMM re: chassis use agreement	3/19/2019	CONFIDENTIAL-OCEO	CX00004212	CX00004215

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Email chain, top email Dan Compton to Mark H George re: Chassis Provisioning whereas Hyundai does not provide chassis- Exercising CHOICE	12/13/2018	CONFIDENTIAL-OCEO	CX00004216	CX00004219
Email chain, top email from Jae Lee to Dan Compton re: HMM requesting open choice approval for several shippers	11/20/2018	CONFIDENTIAL-OCEO	CX00004220	CX00004222
Email chain with attachment DCLI Letter Open Choice Nov 30 2017, top email Daewon Kim to Dan Compton and Byeongsu Kang Re: RE: Memo re IMCC Letter (Compton Dep Ex. 15)	5/12/2020	CONFIDENTIAL-OCEO	CX00004223	CX00004226
Email from Daewon Kim to Junseoki Choi, Seunghoon Lee, Eugene Lee, Yuen Ji, and Min Kim re: ramp operations wheeled or grounded, attaching ramp operations spreadsheet		CONFIDENTIAL-OCEO	CX00004227	CX00004242
Email exchange between Dan Compton and Theresa Norris re: CCM Request	11/5/2018	CONFIDENTIAL-OCEO	CX00004243	CX00004244
Email chain, top email from Daewon Kim to James Ford-Hutchinson, TinaShin, Pat Lau re: Chassis Open choice	6/16/2020	CONFIDENTIAL-OCEO	CX00004245	CX00004266
Email exchange Tina Shin to Jason Seong, Keisha Wallace Bryant re: Chassis	5/30/2019	CONFIDENTIAL-OCEO	CX00004267	CX00004270
Email chain, top email from Tina Shin to Jon Parise, Dan Compton re: NACPC as preferred chassis provider	7 /9/2019	CONFIDENTIAL-OCEO	CX00004271	CX00004272
Email chain, top email from Tina Shin to Zineta Neighbors (Steam Logistics) re: denial of a chassis choice request to use NACPC chassis	8/28/2019	CONFIDENTIAL-OCEO	CX00004273	CX00004275
Email chain, top email from Dan Compton to Kim Salerno, Tina Shin, Holly Ratliff, and Shenika Alford re: Travelpro Products - NACPC - Savannah, GA (Chassis)	1/11/2018	CONFIDENTIAL-OCEO	CX00004276	CX00004285
Canadian National Confidential Transportation Agreement No. 575164-AA with Lotte Global logistics	8/1/2021	CONFIDENTIAL-OCEO	CX00004286	CX00004296
Canadian Pacific Railway Confidential Contract #36693 with HMM	2/4/2020	CONFIDENTIAL-OCEO	CX00004297	CX00004314
Union Pacific Railroad Company Exempt Rail Transportation Agreement with HMM	8/01/2020	CONFIDENTIAL-OCEO	CX00004315	CX00004328
Amendment No. 4 to Chassis Use Agreement between Direct ChassisLink and HMM	8/11/2017	CONFIDENTIAL-OCEO	CX00004329	CX00004338
Email from Chungsik Jeong to Aime Cuypers re: Review on DCLI's Revised Offer	5/4/2016	CONFIDENTIAL-OCEO	CX00004339	CX00004349
Email from Frank Knafelz to Sukwoo re: HMM & DCLI discussion to save cost for both	11/25/2015	CONFIDENTIAL-OCEO	CX00004350	CX00004369
TRAC Intermodal revised proposal to provide daily rental chassis to HMM on a national basis; Email from Dick Ong to Aime Cuypers re: Daily chassis rate Carrier Haulage	2/5/2015; 2/3/2016	CONFIDENTIAL-OCEO	CX00004370	CX00004381
Chassis Purchase Agreement between Direct ChassisLink and HMM; Chassis Use Agreement between Direct ChassisLink and HMM	6/19/2013	CONFIDENTIAL-OCEO	CX00004382	CX00004428
Chassis Use Agreement between DCLI, TRAC Chassis Pool Management, and Flexi-Van Leasing implementing the Pool of Pools in LA/LB	5/1/2015	CONFIDENTIAL	CX00004429	CX00004458
Intermodal Cartage Chassis Reports (Intermodal Cartage_Chassis Usage 2020.csv)	2020	CONFIDENTIAL-OCEO	CX00004459	CX00004459
Email chain, top email from Tony Micena to Will Douglas re: COCP / MWCP chassis providers	10/5/2018	CONFIDENTIAL	CX00004460	CX00004462
Intermodal Cartage Chassis Reports (Intermodal Cartage_Chassis Usage 2017.csv - Intermodal Cartage_Chassis Usage 2019.csv)	2017-2019	CONFIDENTIAL-OCEO	CX00004463	CX00004465
Chassis Purchase Agreement between Direct ChassisLink and MSI	3/26/2015	CONFIDENTIAL-OCEO	CX00004466	CX00004545
Email from Bill Shea to Robert Milazzo re: CCM Railroad Tactics	9/18/2019	CONFIDENTIAL-OCEO	CX00004546	CX00004548
Email chain, top email from Ion Burnic to Antonino Castellano forwarding the letter to ocean carriers	5/24/2017	CONFIDENTIAL-OCEO	CX00004549	CX00004550
Chassis Use Agreement between Direct ChassisLink and MSI	3/26/2015	CONFIDENTIAL-OCEO	CX00004551	CX00004577
Email from Bill Shea to Vincenzo Roveccio re: Request from Schneider National regarding NACPC/CCM	9/5/2017	CONFIDENTIAL-OCEO	CX00004578	CX00004580
Amendment ONE to CSXT Intermodal International Agreement with MSC	03/2020	CONFIDENTIAL-OCEO	CX00004581	CX00004596
Amendment No. 1 to BNSF Intermodal Transportation Contract Agreement MA105 with MSC	5/1/2020	CONFIDENTIAL-OCEO	CX00004597	CX00004599

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Canadian National Railway Company Confidential Transportation Agreement 012808-BZ with MCS	11/15/2020	CONFIDENTIAL-OCEO	CX00004600	CX00004609
Maersk presentation excerpt, "History of the ML/DCLI relationship and changes made along the way"	6/3/2019	CONFIDENTIAL-OCEO	CX00004610	CX00004612
Chassis Use Agreement between Direct ChassisLink and Maersk Agency USA	1/1/2015	CONFIDENTIAL-OCEO	CX00004613	CX00004643
Amendment No. 1 to Chassis Use Agreement between Direct ChassisLink and Maersk Agency USA	3/14/2018	CONFIDENTIAL-OCEO	CX00004644	CX00004651
Equipment User Agreement between TRAC Intermodal and Maersk Agency USA	7/1/2018	CONFIDENTIAL-OCEO	CX00004652	CX00004672
Email exchange from Nicole Yarbrough to Erin Brenner, Hans Christian Aagaard, Jonathan Sinton, and Towns Agnew re: notes from DCLI meeting	10/29/2020	CONFIDENTIAL-OCEO	CX00004673	CX00004678
Equipment User Agreement between TRAC Intermodal and Maersk Agency USA	7/1/2017	CONFIDENTIAL-OCEO	CX00004679	CX00004698
Email chain top email from Matthew Adamec Robert to Thomas Weisberg and Nikolaj Jacob Jessen-Klixbull re: Hamburg Sud chassis provider - SACP	11/1/2018	CONFIDENTIAL-OCEO	CX00004699	CX00004702
Email chain top email Gregg Blanchfield to Thomas Weisberg re: Atlanta Recycling Company - chassis use - MH switch	2/27/2018	CONFIDENTIAL-OCEO	CX00004703	CX00004704
Email from Thomas Weisberg to Michelle Fowler with attachment Chassis_Guideline; Chassis_Guideline_provider_visual Re: Chassis guideline and visual	2/19/2018	CONFIDENTIAL-OCEO	CX00004705	CX00004708
Email from Matthew Robert Adamec to Thomas Weisberg re: CCM IEP response	8/23/2017	CONFIDENTIAL-OCEO	CX00004709	CX00004709
Email chain top email from Matthew Adamec to Scott Bilheimer and Thomas Weisberg re: approval letter	8/9/2017	CONFIDENTIAL-OCEO	CX00004710	CX00004714
Email chain top email from Thomas Weisberg to Mike Wilson, Alyssa Tomcheck, and Ken Tock re: Hamburg Sud chassis provider - SACP	11/14/2018	CONFIDENTIAL-OCEO	CX00004715	CX00004719
Email chain top email from Gregg Blanchfield to Matthew Adamec, Robert Watson, Ron Joseph, and Brian Swanner re: usage assignment in CCM Pools Maersk	10/5/2016	CONFIDENTIAL-OCEO	CX00004720	CX00004721
Canadian National Railway Company Confidential Transportation Master Agreement No. 572970-AA with MSC	01/3/2021	CONFIDENTIAL-OCEO	CX00004722	CX00004764
BNSF Railway Company Intermodal Transportation Contract Agreement MA-80 Amendment No. 4 with Maersk	11/30/2015	CONFIDENTIAL-OCEO	CX00004765	CX00004775
CSX Amendment No. 2 to Agreement for Rail Transport Services with Maersk	3/18/2013	CONFIDENTIAL-OCEO	CX00004776	CX00004863
CCM Chassis Provider Matrix for Wan Hai	1/19/2022		CX00004864	CX00004871
Minutes of the OCEMA Senior Steering Committee	3/26/2020	CONFIDENTIAL-OCEO	CX00004872	CX00004877
Minutes of the OCEMA Senior Steering Committee	5/9/2019	CONFIDENTIAL-OCEO	CX00004878	CX00004882
OCEMA Senior Steering Committee Meeting presentation	3/26/2020	CONFIDENTIAL-OCEO	CX00004883	CX00004918
OCEMA letters from Jeffrey Lawrence to Tim Haas, Tom Weisberg, Robert Milazzo, Gil Lehmann, and Dan Compton re: a gray pool model in Memphis	6/7/2019	CONFIDENTIAL	CX00004919	CX00004935
CCE Board Meeting Presentation	1/23/2018	CONFIDENTIAL-OCEO	CX00004936	CX00005009
CCE Board Meeting Presentation	10/23/2018	CONFIDENTIAL-OCEO	CX00005010	CX00005064
Email from Stacey Normington to OCEMA SSC re: OCEMA SSC Meeting Presentation	5/9/2019	CONFIDENTIAL-OCEO	CX00005065	CX00005117
Email from Josh Stein to Mike Wilson and CCE Board Members attaching February 19, 2020 board minutes	3/13/2020	CONFIDENTIAL	CX00005118	CX00005200
Minutes of the OCEMA Senior Steering Committee Meeting	9/11/2013	CONFIDENTIAL	CX00005201	CX00005206
Agenda for the Management Coordinating Committee callback	2/27/2013		CX00005207	CX00005238
OCEMA Senior Steering Committee presentation	3/26/2020	CONFIDENTIAL-OCEO	CX00005239	CX00005274
Minutes of the OCEMA Senior Steering Committee Meeting	12/5/2012	CONFIDENTIAL	CX00005275	CX00005342
OCEMA Senior Steering Committee meeting presentation	10/28/2020	CONFIDENTIAL-OCEO	CX00005343	CX00005366
Email Ken Tock to Mike Wilson re: Savannah - Use of Truckers Wheels	2/12/2021	CONFIDENTIAL-OCEO	CX00005367	CX00005369
Chassis Use Agreement between NACPC and Ocean Network Express (North America) INC	2/28/2018	CONFIDENTIAL-OCEO	CX00005370	CX00005378

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Amendment to Chassis Use Agreement dated February 28, 2018 between NACPC and Ocean Network Express (North America) INC	4/23/2020	CONFIDENTIAL-OCEO	CX00005379	CX00005381
Multiple Chassis Pool User Agreement between Flexivan and Ocar Network Express (North America) INC	6/1/2020	CONFIDENTIAL-OCEO	CX00005382	CX00005395
Amendment to Equipment User Agreement between TRAC Intermoda and Ocean Network Express (North America) INC	6/1/2020	CONFIDENTIAL-OCEO	CX00005396	CX00005405
Flexi-Van Bid Proposal ONE national chassis RFF	12/20/2017	CONFIDENTIAL-OCEO	CX00005406	CX00005413
Binding Letter of Intent between Flexi-Van and ONE re: ONE Nationa Chassis RFP	2/13/2018	CONFIDENTIAL-OCEO	CX00005414	CX00005415
Letter of Authority For Chassis Pool Provisioning at Union Pacific Railroad Intermodal Terminals	9/11/2018	CONFIDENTIAL	CX00005416	CX00005417
Email from Christina Beitz to Ronnie Armstrong re: SSCP Transition Call - CONFIDENTIAL	10/8/2018	CONFIDENTIAL-OCEO	CX00005418	CX00005421
Email chain, top email from Ronnie Armstrong to JK Park re: ONE SACP & MWCP rate options	2/19/2019	CONFIDENTIAL-OCEO	CX00005422	CX00005428
General Terms and Conditions for Equipment User Agreement between TRAC Intermodal and Ocean Network Express PTE LTD	3/1/2018	CONFIDENTIAL-OCEO	CX00005429	CX00005439
Binding Letter of Intent between Flexi-Van and ONE re: ONE Nationa Chassis RFP	2/1/2018	CONFIDENTIAL-OCEO	CX00005440	CX00005444
Email chain, top email from Ronnie Armstrong (ONE) to Takashi Hayakawa (ONE), Dave Daly, Jeffrey Kabella, and Dermot Johnston re: the Flexi-Van incentive	8/22/2019	CONFIDENTIAL-OCEO	CX00005445	CX00005449
Amendment to Equipment User Agreement between TRAC Intermoda and Ocean Network Express (North America) INC	6/1/2020	CONFIDENTIAL-OCEO	CX00005450	CX00005459
Amendment to the General Terms and Conditions for Equipment User Agreement between TRAC Intermodal and Ocean Network Express (North America) INC	6/1/2020	CONFIDENTIAL-OCEO	CX00005460	CX00005461
Amendment to Equipment User Agreement between TRAC Intermoda and Ocean Network Express (North America) INC	3/1/2018	CONFIDENTIAL-OCEO	CX00005462	CX00005463
Amendment to the General Terms and Conditions for Equipment User Agreement between TRAC Intermodal and Ocean Network Express (North America) INC	3/1/2018	CONFIDENTIAL-OCEO	CX00005464	CX00005465
Equipment User Agreement between TRAC Intermodal and Ocean Network Express (North America) INC	3/1/2018	CONFIDENTIAL-OCEO	CX00005466	CX00005477
Email exchange between Jeff Kabella to Lloyd Ethridge re: Ocean Network Express (North America) Inc.,	4/22/2020	CONFIDENTIAL-OCEO	CX00005478	CX00005479
Email chain, top email from Jeff Kabella to Lloyd Ethridge re: Ocean Network Express (North America) Inc.	4/16/2020	CONFIDENTIAL-OCEO	CX00005480	CX00005481
Email chain, top email from Jeff Kabella to Steve Smith re: NACPC Chassis	12/17/2019	CONFIDENTIAL-OCEO	CX00005482	CX00005492
Email chain, top email from Jeff Kabella to Shinya Takada re: Agreement request for DCLI chassis	10/16/2019	CONFIDENTIAL-OCEO	CX00005493	CX00005494
Email chain, top email from Christina Beitz to Jeffrey Kabella re: chassis provider request	2/8/2019	CONFIDENTIAL-OCEO	CX00005495	CX00005499
Email chain, top email from Jeff Kabella to Christina Beitz re: Use of DCLI Chassis & Direct billing	1/24/2020	CONFIDENTIAL-OCEO	CX00005500	CX00005502
BNSF Contract MA107 International Internal Transportation Contract with ONE	7/31/2022	CONFIDENTIAL-OCEO	CX00005503	CX00005510
Canadian National Railway Company Confidential Transportation Master Agreement No. 561828-AA with ONE	9/1/2019	CONFIDENTIAL-OCEO	CX00005511	CX00005532
Amendment One to the CSXT Intermodal International Agreement with ONE	8/1/2020	CONFIDENTIAL-OCEO	CX00005533	CX00005540
Norfolk Southern Railway Company Intermodal Transportation Agreement with ONE	2/2/2019	CONFIDENTIAL-OCEO	CX00005541	CX00005562
Norfolk Southern Railway Company Amendment #1 to Intermodal Transportation Agreement with ONE	6/1/2020	CONFIDENTIAL-OCEO	CX00005563	CX00005565
summary of the chassis drays that we have done in the Memphis market versus the Savannah market for the time period of January of 2021 through August of 2021	2021	CONFIDENTIAL-OCEO	CX00005566	CX00005614
Email chain between Paul Yang and Mary O'Neil Harding from Trac Intermodal re: 2015 CSR report and the supplier social responsibility commitment	6/2/2017	CONFIDENTIAL-OCEO	CX00005615	CX00005770

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Amendment to Equipment User Agreement between TRAC Intermoda and Wan Hai Lines LTD	7/1/2021	CONFIDENTIAL-OCEO	CX00005771	CX00005776
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Wan Hai Lines LTD	2/1/2016	CONFIDENTIAL-OCEO	CX00005777	CX00005788
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Wan Hai Lines LTD	4/1/2020	CONFIDENTIAL-OCEO	CX00005789	CX00005802
Amendment to the Equipment User Agreement between TRAC Intermodal and Wan Hai Lines LTD	2/1/2017	CONFIDENTIAL-OCEO	CX00005803	CX00005807
Email from Tony Micena to Mary O'Neil Harding re: YML Revised Conversion proposal from the COCP to the TMEP and the revised YML Genset/Chassis proposal	3/1/2019	CONFIDENTIAL-OCEO	CX00005808	CX00005831
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Yang Ming Marine Transport Corp.	1/1/2020	CONFIDENTIAL-OCEO	CX00005832	CX00005853
Email chain, top email from Tony Micena to Norman Choi re: IMCC Complaint	3/25/2021	CONFIDENTIAL-OCEO	CX00005854	CX00005858
Equipment User Agreement for Marine Chassis Pools between TRAC Intermodal and Yang Ming Marine Transport Corp.	1/1/2017	CONFIDENTIAL-OCEO	CX00005859	CX00005886
Email chain, top email from Tony Micena to Emily Dunn and Nicole Hassell re: Chassis preferred choice	5/7/2019	CONFIDENTIAL-OCEO	CX00005887	CX00005891
Email exchange between Austin Chen and Mary O'Neill Harding re: American Global Logistics - SACP, NACPC designation YML	6/20/2016	CONFIDENTIAL-OCEO	CX00005892	CX00005892
Email from Tony Micena to Martin Huang re: chassis contract negotiation progress	10/22/2019	CONFIDENTIAL-OCEO	CX00005893	CX00005900
Email from Betty Yang to Tony Micena re: chassis contract negotiation progress TPSP	4/21/2020	CONFIDENTIAL-OCEO	CX00005901	CX00005913
Email chain, top email from Tony Micena to Betty Yang re: Yang Ming COCP to TMEP conversion	5/1/2019	CONFIDENTIAL-OCEO	CX00005914	CX00005919
E-mail chain, top email from Ken Tock to Austin Chen re: YM update on CCM choice model	6/27/2017	CONFIDENTIAL	CX00005920	CX00005921
Email from Austin Chen to Martin Huang re: YML Proposed rate for Metro and Contractual Increases for Chicago and LA/LBCH	6/1/2015	CONFIDENTIAL-OCEO	CX00005922	CX00005934
Amendment to Equipment User Agreement between TRAC Intermoda and Yang Ming (America)	4/15/2019	CONFIDENTIAL-OCEO	CX00005935	CX00005939
Amendment to Equipment User Agreement between TRAC Intermoda and Yang Ming (America)	1/1/2019	CONFIDENTIAL-OCEO	CX00005940	CX00005943
BNSF Railway Company Amendment No. 4 to International Transportation Agreement MA40 with Yang Ming	7/1/2018	CONFIDENTIAL-OCEO	CX00005944	CX00005957
2019 Canadian Pacific Railway Company Confidential Contract #503894 with Yang Ming	5/30/2019	CONFIDENTIAL-OCEO	CX00005958	CX00005980
Union Pacific Railroad Company First Amendment to Exempt Rail Transportation Agreement with Yang Ming	1/1/2014	CONFIDENTIAL-OCEO	CX00005981	CX00005986
Equipment User Agreement for LABP Chassis Pool Chassis between TRAC Intermodal and Yang Ming (America)	5/1/2014	CONFIDENTIAL-OCEO	CX00005987	CX00005999
Equipment User Agreement for MCCP Chassis Pool Chassis between TRAC Intermodal and Yang Ming (America) Corporation	10/1/2013	CONFIDENTIAL-OCEO	CX00006000	CX00006012
Amended and Restated Equipment User Agreement for COCP Chassis Pool Chassis between TRAC Intermodal and Yang Ming (America)	5/1/2014	CONFIDENTIAL-OCEO	CX00006013	CX00006026
Equipment User Agreement for MCCP Chassis Pool between Trac Intermodal and Yang Ming	10/1/2013	CONFIDENTIAL-OCEO	CX00006027	CX00006039
Equipment User Agreement between TRAC Intermodal and ZIM Integrated Shipping	3/1/2016	CONFIDENTIAL-OCEO	CX00006040	CX00006099
Amendment to Equipment User Agreement between TRAC Intermoda and ZIM Integrated Shipping Services	9/1/2017	CONFIDENTIAL-OCEO	CX00006100	CX00006124
Email from Bart Spangler to Ayal Anat and Marcus Michael attaching chassis provider overview presentation	10/27/2015	CONFIDENTIAL-OCEO	CX00006125	CX00006135
Second Amendment to the Canadian National Railway Company Confidential Transportation Agreement No. 016223-AY with ZIM	2/11/2016	CONFIDENTIAL-OCEO	CX00006136	CX00006142
Evergreen per diem invoice to IMC Companies	4/1/2020	CONFIDENTIAL-OCEO	CX00006143	CX00006144
"Choie package data.xlsx" spreadsheet	2018-2021	CONFIDENTIAL	CX00006145	CX00006145
Chassi Splits.xlsx spreadsheet with chassis splits per year from 2017 2021	2017-2021	CONFIDENTIAL-OCEO	CX00006146	CX00006146

EXHIBIT A				
Description	Date	Confidential	CX Prodbeg	CX Prodend
Memphis Supply Chain Innovation Team White Paper	2019		CX00006147	CX00006150
APL Highlights Significant Contributions to Containerization, SEAPORTS PRESS REVIEW (Apr. 6, 2006), https://web.archive.org/web/20061229100504/http://www.seaportspr.com/viewtechnews.cgi?newsletter_id=49&article_id=2200	4/6/2006		CX00006151	CX00006152
Deposition Transcript of Dan Compton, HMM 143(b)(6) [Excerpt]	11/17/2021	CONFIDENTIAL	CX00006153	CX00006155
Stipulations Concerning Respondent Yang Ming Marine Transport Corp.	2/22/2022	CONFIDENTIAL-OCEO	CX00006156	CX00006162

CERTIFICATE OF SERVICE

I certify that, on May 4, 2022, a true and current copy of the foregoing Supplemental Motion for Confidential Treatment and the attachments thereto were filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

Wayne R. Rohde
Christopher Raleigh
Mark Rabinowitz
Kathryn Sobotta
Cozen O'Connor
1200 Nineteenth Street, NW
Washington, D.C. 20036
wrohde@cozen.com
craleigh@cozen.com
mrabinowitz@cozen.com
ksobotta@cozen.com

Counsel for Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC.; CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; HMM Company Limited; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Zim Integrated Shipping Services; and Evergreen Line Joint Service Agreement, FMC No. 011982

Deana E. Rose
Manelli Selter PLLC
1725 I Street, NW, Suite 300
Washington, D.C. 20006
drose@mdslaw.com

Counsel for Yang Ming Marine Transport Corp.

Gerald A. Morrissey III
Christopher Nolan
Holland & Knight LLP
800 17th Street NW, Suite 1100
Washington, D.C. 20006
gerald.morrissey@hkllaw.com
chris.noland@hkllaw.com

Counsel for Hapag-Lloyd AG

DATED: May 4, 2022

/s/ Janice Johnson

Janice Johnson
CONSTANTINE CANNON LLP